

Top of Document

Search Terms

Table of Contents

History

Annotations

Notes

Research Referen...



7 USCS § 2543

Copy Citation



Compare Versions

Current through Public Law 119-93, approved May 19, 2026.

Heading

United States Code Service
TITLE 7. AGRICULTURE (Chs. 1 – 116)
CHAPTER 57. PLANT VARIETY PROTECTION (§§ 2321 – 2583)
PLANT VARIETY PROTECTION AND RIGHTS (§§ 2531 – 2583)
INFRINGEMENT OF PLANT VARIETY PROTECTION (§§ 2541 – 2545)

§ 2543. Right to save seed; crop exemption

Except to the extent that such action may constitute an infringement under subsections (3) and (4) of section 111 [7 USCS § 2541(3) and (4)], it shall not infringe any right hereunder for a person to save seed produced by the person from seed obtained, or descended from seed obtained, by authority of the owner of the variety for seeding purposes and use such saved seed in the production of a crop for use on the farm of the person, or for sale as provided in this section. A bona fide sale for other than reproductive purposes, made in channels usual for such other purposes, of seed produced on a farm either from seed obtained by authority of the owner for seeding purposes or from seed produced by descent on such farm from seed obtained by authority of the owner for seeding purposes shall not constitute an infringement. A purchaser who diverts seed from such channels to seeding purposes shall be deemed to have notice under section 127 [7 USCS § 2567] that the actions of the purchaser constitute an infringement.

History

HISTORY:

Dec. 24, 1970, P.L. 91-577, Title III, ch 11, § 113, 84 Stat. 1555; Oct. 6, 1994, P.L. 103-349, § 10, 13(s), 108 Stat. 3142, 3144.

Annotations

Notes

HISTORY: ANCILLARY LAWS AND DIRECTIVES

Effective date of section:

Amendment Notes

1994.

Effective date of section:

This section is effective on enactment, as provided by § 141 of Act Dec. 24, 1970, P.L. 91-577, Title III, ch 14, 84 Stat. 1558, which appears as 7 USCS § 2321 note.

Amendment Notes

1994.

Act Oct. 6, 1994 (effective 180 days after enactment, as provided by § 15 of such Act, which appears as 7 USCS § 2401 note), substituted "section." for "section: Provided, That without regard to the provisions of section 111(3) it shall not infringe any right hereunder for a person, whose primary farming occupation is the growing of crops for sale for other than reproductive purposes, to sell such saved seed to other persons so engaged, for reproductive purposes, provided such sale is in compliance with such State laws governing the sale of seed as may be applicable"; substituted "the person" for "him" preceding "from seed"; substituted "the farm of the person" for "his farm", and substituted "the actions of the purchaser" for "his actions".

NOTES TO DECISIONS

1. Construction

2. Relationship with other laws

1. Construction

7 USCS § 2543 only exempts sales of protected variety from one farmer directly to another farmer accomplished without active intervention of third party, and thus sales arranged by agent or co-operative are not exempt under § 2543. *Delta & Pine Land Co. v. Peoples Gin Co.*, 694 F.2d 1012, 1983 U.S. App. LEXIS 27905 (5th Cir. 1983).

2. Relationship with other laws

Family farmers will not be permitted to continue selling thousands of bushels of protected variety seed through method of "brown bagging," even though they argue they are exempt from restriction of 7 USCS § 2541 by § 2543 "farmer exception" since they harvested, cleaned, and saved this seed, because § 2543 "saved seed" is limited to amount of protected seed reasonably needed by farmer who grew it to plant number of acres of protected variety, or its progeny, he or she needs in upcoming crop year. *Asgrow Seed Co. v. Winterboer*, 513 U.S. 179, 115 S. Ct. 788, 130 L. Ed. 2d 682, 8 Fla. L. Weekly Fed. S 537, 95 Cal. Daily Op. Service 425, 95 D.A.R. 762, 33 U.S.P.Q.2d (BNA) 1430, 1995 U.S. LEXIS 693 (1995).

Shepard's®

Citing references with analysis

Citing Decisions

29

Neutral

2

Cited

28

Shepardize® document

Source Information

USCS - United States Code Service - Titles 1 through 54

Related Content

Find references to this code

Archived code versions(34)